

26STCP01385 26STCP01385

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Case Number: 26STCP01385 Hearing Date: August 11, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JAMES J. MAKSIMUK,

Petitioner(s),

vs.

AMY J.

BODEK, et al.,

Respondent(s).

Case No.:

26STCP01385

Hearing Date:

August 11, 2026

[TENTATIVE]

ORDER RE: DEMURRER

Respondents Amy J. Bodek ("Bodek"), Michelle Lynch ("Lynch"), and Los Angeles County Planning Department ("Planning") (collectively, "Respondent") demur to plaintiff James J. Maksimuk's ("Petitioner") verified petition for writ of mandate and complaint for declaratory relief, injunctive relief, and damages ("Petition").

The demurrer is sustained without leave to amend.

I.

Factual Allegations

Petitioner alleges as follows. Petitioner owns and resides at property located 10160 Escondido Cyn Rd, Santa Clarita, CA 91390 ("Property"). (Pet., ¶ 4.) The Property is zoned A-1-2, an agricultural zoning that allows single-family residences. (Pet. at 5.)

On April 3, 2025, Respondent rejected Petitioner's plan to subdivide the Property (plan no. RPA2025001608, "Plan") under the provisions of Senate Bill 9 ("SB 9") which provide for ministerial approval. (Pet. at 5.) Respondent rejected the Plan because the Property is not zoned as residential and because Accessory Dwelling Units ("ADUs") are only allowed where there is an existing primary residential use. (Pet. at 5.)

On April 4, 2025, Petitioner replied to Respondent, arguing that the primary purpose of the zone in question is single family residence, and so SB 9 applies.

On April 6, 2025, Respondent maintained its position, stating the primary purpose of A-1 zoning is not residential.

II.

Procedural History

Petitioner filed the petition against Respondent on April 7, 2026. There is no proof of service on file.

On May 26, 2026, Respondent demurred to the Petition. On June 17, 2026, Petitioner filed a "Declaration for: Petitioner's Opposition to

Demurrer to Petition for Writ of Mandate and Complaint for Damages; Memorandum of Points and Authorities”.

On June 18, 2026, the Court denied Petitioner’s ex parte application for trial preference without prejudice to Petitioner to file a properly noticed motion for trial preference.

On July 16, 2026, Respondent filed its reply. Respondent’s reply suggests Petitioner served Respondent with a referenced opposition memorandum; however, Petitioner did not file any documents in opposition aside from the above-stated declaration.

On July 23, 2026, the Court heard Respondent’s demurrer. Petitioner represented that he served an opposition on Respondent. Respondent represented that it received the opposition. The Court permitted Petitioner’s opposition to be filed after the original hearing so that it could be considered in full. The Court therefore continued the hearing and ordered Petitioner to file within two days the opposition he served on Respondent.

On July 24, 2026, Petitioner filed his opposition.

The Court has considered all documents filed and properly before it.

III.

Legal Standard

A demurrer tests the legal sufficiency of the pleading alone and will be sustained where the pleading is defective on its face.

A demurrer may be asserted on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain (“uncertain” includes ambiguous and unintelligible); (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the

contract is written, is oral, or is implied by conduct; (h) No certificate was filed as required by CCP section 411.35 or (i) by CCP section 411.36. (CCP §430.10.) Accordingly, a demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP §430.30(a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94); it does not include inadmissible hearsay. (*Day v. Sharp*, (1975) 50 Cal.App.3d 904, 914.)

The sole issue on demurrer for failure to state a cause of action is whether the facts pleaded, if true, would entitle the plaintiff to relief. (*Garcetti v. Superior Court* (1996) 49 Cal.App.4th 1533, 1547 [*"Garcetti"*]; *Limandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.) The question of plaintiff's ability to prove the allegations of the complaint or the possible difficulty in making such proof does not concern the reviewing court. (*Quelimane Co. v. Stewart Title Guaranty Co.*, (1998) 19 Cal.4th 26, 47.) The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (*Marshall v. Gibson, Dunn & Crutcher*, (1995) 37 Cal.App.4th 1397, 1403 [*"Marshall"*].) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates*, (1995) 36 Cal.App.4th 698, 709 [*"Vance"*].)

These principles guide the Court's analysis of Respondent's demurrer, below.

IV.

Analysis

Respondent demurs to the Petition in its entirety for failure to state facts sufficient to constitute a cause of action on the basis that it is time-barred. Respondent further demurs to each cause of action. For the first cause of action, titled "Want of Ordinary Care / Negligence, CA Code 815.2 (a), 815.6, 820 (a)," Respondent demurs on the basis that it fails to state facts sufficient to constitute a cause of action. For the second cause of action, titled "Dereliction of Duty," Respondent demurs on the basis that there is no such cause of action. For the third cause of action, untitled but

evidently for traditional mandamus, Respondent demurs on the basis that it fails to state facts sufficient to constitute a cause of action.

1.

The Petition Is Untimely

Respondent argues the entire Petition is untimely under the 90-day statute of limitations established by Government Code section 66499.37.

This section provides, in part:

“Any action or proceeding to attack, review, set aside, void, or annul the decision of an advisory agency, appeal board, or legislative body concerning a subdivision, or of any of the proceedings, acts, or determinations taken, done, or made prior to the decision, or to determine the reasonableness, legality, or validity of any condition attached thereto, including, but not limited to, the approval of a tentative map or final map, shall not be maintained by any person unless the action or proceeding is commenced and service of summons effected within 90 days after the date of the decision. Thereafter all persons are barred from any action or proceeding or any defense of invalidity or unreasonableness of the decision or of the proceedings, acts, or determinations.” (Gov. Code § 66499.37.)

Because the Petition seeks to set aside Respondent's denial of a subdivision request under SB 9, it falls squarely within Government Code section 66499.37. Regardless of characterization, all legal theories in the Petition depend on this Court finding that the decision to deny the Plan was improper. (See generally, Pet.) In other words, each cause of action in the Petition requires the Court to review Respondent's decision concerning the subdivision Plan. Therefore, the 90-day statute of limitations applies.

Respondent denied the Plan on April 3, 2025. (Pet. at 5.)

Consequently, the limitations period ended 90 days after April 3, 2025, or July 2, 2025. Petitioner filed the Petition on April 7, 2026, over a year after the original denial and nine months after the end of the applicable limitations period.

In opposition, Petitioner raises two primary arguments.

First, Petitioner argues that Respondent did not issue a “formal administrative denial after processing,” but rather “‘voided’ the online submission via the [online] portal on the exact day it was submitted.” (Opp. at 9.) Consequently, Petitioner contends there was no decision for the purposes of Government Code section 66499.37.

Petitioner presents no authority or argument to explain why voiding his application did not constitute a decision for the purposes of Government Code section 66499.37. Moreover, his own Petition characterized this action as Respondent rejecting the Plan. (Pet. at 5.) Respondent voided the application and transmitted to Petitioner an email explaining that the application was voided on the basis that the Property is not legally eligible for the SB 9 subdivision process. (Pet. at 5, Ex. C.) Therefore, the voiding was clearly a decision concerning a subdivision, and at a minimum was part of “any of the proceedings, acts, or determinations taken, done or made prior to the decision.” (Gov. Code § 66499.37.) Consequently, the Government Code section 66499.37 limitations period applies and the petition is time-barred.

Second, Petitioner argues the petition is not about a subdivision dispute, but what he characterizes as Respondents’ alleged “ultra vires” action of imposing conditions outside of SB 9. (Opp. at 10.) However, the Petition seeks a writ of mandate directing Respondent to vacate its denial of the Plan on the basis that the denial was wrongful. (Pet. at 9.) While Petitioner alleges the wrongfulness of the decision stems from constitutional violations and statutory interpretation, the action remains an action to set aside a decision on a subdivision under SB 9 and thus remains subject to the limitations period set forth in Government Code section 66499.37. (Gov. Code § 66499.37.)

Accordingly, the entire Petition is barred by the statute of limitations and, even assuming the truth of all well-pleaded facts, the limitations defect cannot be cured by amendment.

2.

Each Cause of Action Independently Fails

Even if the Court were to conclude that the Petition is not barred by the applicable statute of limitations, the Court would still sustain

the demurrer because each cause of action independently fails as a matter of law for the reasons set forth below. These independent defects exist even assuming all allegations are taken as true.

a.

The First Cause of Action Fails

Petitioner's first cause of action is titled "Want of Ordinary Care / Negligence, CA Code 815.2 (a), 815.6, 820 (a)". (Pet. at 10.) Petitioner alleges Respondent improperly denied Petitioner's Plan. (See Pet. at 12-13.) Petitioner alleges this denial proximately harmed Petitioner, causing him damages by preventing him from constructing ADUs and renting them for profit. (See Pet. at 17-18.) Petitioner alleges Respondent's denial constitutes a breach of the duty of care on the basis that Respondent was required to "review the applicable statutory text" and "act on [Petitioner's] request in ministerial capacity as stipulated in SB-9." (Pet. at 18.) Petitioner cites Government Code sections 815.2 (providing for vicarious liability on the part of public entities for employee liability caused by acts or omissions within the scope of employment) and 820, subdivision (a), (providing that public employees are liable for injury to the same extent as private persons, subject to statutory exceptions), as the basis for the claim.[1]

Respondent argues this cause of action fails because, under Government Code sections 818.4 and 821.2, Respondents Planning, Bodek and Lynch are a public entity and public employees not liable for injury caused by denial or failure to issue approval for matters which they are authorized to determine.

Under Government Code section 815.2, a public entity is liable for acts or omissions by their employees committed during the scope of employment, "if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." (Gov. Code § 815.2.)

Under Government Code section 820, subdivision (a), a public employee is liable for injury to the same extent as a private person "[e]xcept as otherwise provided by statute". (Gov. Code § 820(a).)

The Government Code also provides that public entities (Gov. Code § 818.4) and public employees (Gov. Code § 821.2) "[are] not liable for an injury caused by [the] issuance, denial, suspension or revocation of, or by [the]

failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where [they are] authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked.” (Gov. Code §§ 818.4, 821.2). Consequently, if Respondent is authorized by enactment to determine whether the Plan should have been approved or denied, Respondent is not liable for any injury caused by that denial.

While Petitioner alleges the Plan met all objective criteria and so should have been approved, Respondent is undisputedly authorized by enactment to determine whether the Plan should have been approved or denied, albeit ministerially.[2] (See, e.g., Pet., at 12.)

Therefore, by operation of Government Code section 818.4 and 821.2, Respondents Planning, Bodek, and Lynch are not liable for any injury caused by denial of the Plan. Because public entity vicarious liability under Government Code section 815.2 only applies where the public employees are themselves liable, respondent Planning is also not subject to liability through that section.

Accordingly, the first cause of action fails as a matter of law. This conclusion is based solely on the statutory immunity applicable to Respondent’s decision and does not reflect any evaluation of the merits of Petitioner’s disagreement with that decision. As all liability for the alleged actions is precluded by statute, and because immunity applies regardless of Petitioner’s characterization of Respondent’s decision, leave to amend would not be appropriate.

b.

The Second Cause of Action Fails

Petitioner’s second cause of action is titled “Dereliction of Duty.” (Pet. at 21.) Petitioner alleges Respondent violated Government Code section 19572, subdivision (d), “Inexcusable neglect of duty.”[3] (Pet. at 21.)

Respondent argues Government Code section 19572 does not provide a private right of action, and generally no cause of action exists for “Dereliction of Duty.” (Opp. at 11.)

The Court agrees. Government Code section 19572 provides an enumerated list of grounds constituting cause to discipline an employee under the State Civil Service Rules. (Gov. Code § 19572; see Gov. Code §§ 18500-19799.) Subdivision (d) of this section provides that “[i]nexcusable neglect of duty” constitutes one such grounds. (Gov. Code § 19572(d).) Nothing in this section or the Civil Service Rules more broadly provides that grounds to discipline a public employee may result in a private right of action or liability to a private party.

Accordingly, the second cause of action fails as a matter of law. No amendment could create a private right of action where none exists under statute; therefore, leave to amend is not appropriate.[4]

c.

The Third Cause of Action Fails

Petitioner's untitled third cause of action does not expressly seek relief under CCP section 1085 (or any other section of the CCP). However, this cause of action alleges a ministerial duty (Pet. at 23), a beneficial interest (Pet. at 23), breach of that duty (Pet. at 24), exhaustion of available administrative remedies (or alternatively futility) (Pet. at 24), and otherwise no adequate remedy at law (Pet. at 24).[5]

This is the substance of a traditional mandamus claim. (*Pomona Police Officers' Assn. v. City of Pomona* (1997) 58 Cal.App.4th 578, 583-84 [“Generally, a writ will lie when there is no plain, speedy, and adequate alternative remedy; the respondent has a duty to perform; and the petitioner has a clear and beneficial right to performance.”].) Petitioner also identifies the Petition as, in part, “for Writ of Mandate (CCP §§ 1085, 1094.5).” (Pet. at 1.) Petitioner alleges, as described in more detail ante, that Respondent had a ministerial duty to approve his Plan to subdivide his Property under SB 9, but instead Respondent denied the Plan. (Pet. at 23-24.)

Respondent argues that Respondent did not violate its ministerial duty, and that Petitioner has adequate remedy at law.

i. Respondent

Did Not Violate Any Identified Ministerial Duty

Respondent argues that Government Code sections 65852.21 and

66411.7 (codifying SB 9) do not require Respondent to ministerially approve Petitioner's Plan. Specifically, Respondent contends that the Property is not within a single-family residential zone.[6]

Government Code section 65852.21, subdivision (a), provides, in part, that "[a] proposed housing development containing no more than two residential units within a single-family residential zone shall be considered ministerially" (Gov. Code § 65852.21(a) [emphasis added].) Likewise, Government Code section 66411.7, subdivision (a), provides that "[n]otwithstanding any other provision of this division and any local law, a local agency shall ministerially approve, as set forth in this section, a parcel map for an urban lot split only if the local agency determines that the parcel map for the urban lot split meets all the following requirements: . . . The parcel is located within a single-family residential zone." (Gov. Code § 66411.7(a).)

Petitioner relies on the California Department of Housing and Community Development's SB 9 Fact Sheet (2022) ("Fact Sheet") for the proposition that "[a] zone where single-family residential use is a legal, permitted use is considered a single-family residential zone for purposes of SB 9." (Pet. at 5.) Respondent notes that this same guidance document specifically excludes agricultural zones. The 2022 Fact Sheet is not the current version of the fact sheet and neither party provides any version of the Fact Sheet or asks the Court to take judicial notice of it.

Regardless, Petitioner agrees the Property is zoned A-1 for agricultural use. (Pet. at 5.) This is not a single-family residential zone. Consequently, SB 9 does not apply. SB 9 applies only where a parcel is located in a single-family residential zone. The Property's A-1-2 designation is an agricultural zone as a matter of law, and the Court cannot, through mandamus, redefine that zoning classification.

Based on the foregoing, Petitioner does not allege facts showing Respondent violated any identified ministerial duty. Accordingly, the third cause of action fails as a matter of law and leave to amend is not appropriate. Given this conclusion, the Court need not reach any further arguments. The Court expresses no view on any policy concerns raised by Petitioner, and rules only on the legal sufficiency of the pleading.

V.

Conclusion

The entire Petition is untimely, and the individual causes of action also fail. The demurrer is SUSTAINED without leave to amend.

Respondent is directed to file and serve a proposed judgment of dismissal within five court days of this order. An OSC re: dismissal is set for August 25, 2026 at 9:30 a.m. If a judgment of dismissal has been entered by that date, the OSC will be taken off calendar.

Date: August 11, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Petitioner also cites, in passing, Government Code section 815.6. Under this statute, a public entity is liable when it fails to discharge a mandatory duty designed to protect against the risk of a particular kind of injury, if the failure to discharge the duty proximately causes that kind of injury. (Gov. Code § 815.6.) The public entity may avoid liability by establishing that it “exercised reasonable diligence to discharge the duty.” (Gov. Code § 815.6.) Petitioner does not explain what statute is “designed to protect against the risk of a particular kind of injury” that he suffered. (See generally Pet.) None of the statutes referenced appear designed to protect against the risk of lost income on rental units.

[2]

In opposition, Petitioner argues that these sections only applied to discretionary duties, but the duties at issue in the petition are exclusively ministerial. Petitioner cites no authority supporting such limitation, and text of the statutes does not support Petitioner’s interpretation.

[3]

Petitioner again cites Government Code section 815.6 in passing. See n. 2.

[4]

In opposition, Petitioner concedes no right of action under Government Code section 19572, subdivision (d), but argues he should be granted leave to amend because Respondent willfully departed from a non-discretionary statutory mandate, which Petitioner contends is actionable under Government Code section 815.6. Even assuming arguendo that Petitioner is correct, granting leave to amend on this basis would only make the second cause of action entirely duplicative of the first cause of action.

[5]

Petitioner also alleges an abuse of discretion on the basis that the decision was arbitrary and capricious. (Pet. at 24.) However, in the same sentence Petitioner alleges an abuse of discretion, Petitioner maintains that the duty at issue was ministerial. Regardless, traditional mandamus under CCP section 1085 is the appropriate remedy for governmental abuse of discretion outside the confines of an administrative evidentiary hearing. (See CV Amalgamated LLC v. City of Chula Vista (2022) 82 Cal.App.5th 265, 278-79; see also CCP § 1094.5.)

[6]

Respondent also relies on the requirement in SB 9 that the parcel be located in a city including urbanized area or urban cluster or, if in unincorporated area, entirely within an urbanized area or urban cluster. (Dem. at 12-13, citing Gov. Code §§ 65852.21(a), 66411.7(a).) These sections specify that “urbanized area” and “urban cluster” are “as designated by the United States Census Bureau.” (Gov. Code §§ 65852.21(a), 66411.7(a).) Respondent’s general allusion to Petitioner’s photograph to show “the property is clearly not in an urbanized area or urban cluster” provides no insight into whether the U.S. Census Bureau has made such designation.